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CASE #	CASE NAME	HEARING NAME
CVME2513565	JAFARI VS CILING	MOTION FOR SALE OF DWELLING

Tentative Ruling:

The Court **GRANTS** the Motion for Sale of Dwelling. The Court notes that Defendants filed Supplemental Replies on June 3, 2026 and June 4, 2026. The Court exercises its discretion not to consider these late filings. Cal Rules of Court, rule 3.1300(d). This matter has already been continued and defendants had the opportunity to and did file an Opposition.

Statutory procedure

CCP §§ 704.750, 704.760 contemplates an application and Order to Show Cause procedure. An OSC was not issued here. According to Plaintiff, nonetheless, this motion is the legal equivalent. This Court has jurisdiction over Anke who made a general appearance in this action on April 1, 2026. This motion is presented to this Court as a court of general jurisdiction and equity with jurisdiction over the subject property and the property owner. This case was filed on December 19, 2025 as a creditor's suit to pursue assets of the judgment debtors of the LA judgment. Those judgment debtors include Sammy Ciling ("Sammy") and his wife, Anke. Although Sammy and Anke are married, Anke is the sole title holder of the subject property.

The typical procedure is a two-step process: (1) an application for sale of dwelling and (2) post-application for sale of dwelling.

Plaintiff argues that the procedure is inapplicable in this case because this is a noticed motion that is part of a pre-existing case and the substance of the statutory procedure has been satisfied. The Court agrees; there is no prejudice in proceeding with this noticed motion as the aspects of an OSC are addressed.

No Homestead Exemption

At the OSC, the Court must determine whether a homestead exemption applies under CCP §704.780. Where Judgment Creditor's application sets forth an amount of exemption, the burden is on Judgment Debtor to establish the inapplicability of that exemption amount. (CCP §704.780(a)(2).)

The Court must then decide as to (1) whether the property is exempt; (2) if so, the amount of the exemption and the FMV of the property. (CCP §704.780(b).) If the Court determines that the dwelling is exempt, the Court shall determine the amount of the homestead exemption and the fair market value of the dwelling. (CCP §704.780(b).) The Court must then order sale of the dwelling subject to the exemption, unless it finds that the sale of the dwelling would not produce a sufficient bid to satisfy the homestead exemption and any outstanding liens or encumbrances, including the judgment of Judgment Creditor. (Id.) If there are insufficient bids, the dwelling shall be

released and not subject to a subsequent order for application of sale by the same judgment creditor for one year. (CCP §704.800(a).)

If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in Article 6 (commencing with Section 701.510) of Chapter 3. (CCP §704.780(b).)

Here, The Riverside County Recorder's Office reflects a claim of homestead exemption by Anke, but that was expunged and barred in the future under the judgment (exhibit 10) of August 12, 2025. There is a claim of Ultim8 Equities LLC, as Assignee, of a Second Trust Deed in the amount of \$175,000 and a Third Trust Deed in the amount of \$450,000. However, those Trust Deeds have been extinguished by the judgment of August 12, 2025 (Exhibit 11). The LA Judgment (the underlying judgment) is not based on a consumer debt. The LA judgment was originally in the amount of \$2,640,584.84, but has been increased to \$4,224,731.88 (Exhibit 12, December 19, 2025 writ of execution).

Since there is no homestead exemption, there is no need to provide fair market value. The statute (CCP § 704.780(b)) provides:

(b) The court shall determine whether the dwelling is exempt. if the court determines that the dwelling is exempt, the court shall determine the amount of the homestead exemption and the fair market value of the dwelling. the court shall make an order for sale of the dwelling subject to the homestead exemption, unless the court determines that the sale of the dwelling would not be likely to produce a bid sufficient to satisfy any part of the amount due on the judgment pursuant to section 704.800. The order for sale of the dwelling subject to the homestead exemption shall specify the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and shall include the name and address of each such person. subject to the provisions of this article, the sale is governed by article 6 (commencing with section 701.510) of Chapter 3. If the court determines that the dwelling is not exempt, the court shall make an order for sale of the property in the manner provided in article 6 (commencing with section 701.510) of Chapter 3.

(CCP § 704.080(b).) [emphasis added]